

Civil Registration System

Civil Registration is a continuous, permanent, compulsory recording of the occurrence and characteristics of vital events, like births, deaths and still births. In India the registration of births and deaths is carried out under provisions of the Registration of Birth and Death (RBD) Act, 1969 (amended in 2023) and Registrar General of India is entrusted with the responsibilities of co-ordinating and unifying the activities of the Chief Registrar of Births and Deaths. Chief Registrar of Births and Deaths in each States/UTs is the implementing authority and the registration of births and deaths is done by the local registrars appointed by the State Government under whose jurisdiction the event has taken place. It is the duty of the Chief Registrar to compile, publish and submit the Annual Statistical Report based on Civil Registration System to the State Government as well as Registrar General, India.

1.What is the time period prescribed for registering the event?

The normal period of 21 days (from the date of occurrence) has been prescribed for reporting the birth, death and still birth events.

2. Is there any fee for registration of births and deaths?

If event of a birth or death is reported for registration to the prescribed authority within the normal period of 21 days, no fee would be charged.

3. Whether registration can be made after the normal period of reporting?

If any event of birth or death is not reported for registration within 21 days, the same can be reported any time under the Delayed Registration provisions prescribed under Section 13 of the Act with payment of fee prescribed.

4. Who are responsible for reporting the event?

(i) In respect of birth or death occurred in a house, it is the duty

of the Head of the house/household or nearest relative of the head present in the house or in the absence of any such person, the oldest person present therein during the said period is responsible to report the event to the concerned Registrar/ sub Registrar. These events can also be reported through the prescribed Notifiers such as Anaganwadi Workers, ANM's, ASHA's and others.

(ii) In respect of birth or death **occurred in a hospital, health center, Maternity or nursing home or other such institutions, the medical officer In-charge or any person authorized by him** in this behalf is responsible for reporting. These events are **NOT** to be reported by persons specified in (i) above.

5. Whom to approach for registration?

The events of birth and death are registered at the place of occurrence of the event i.e. where the event took place. Under the provision of Section 7 of the RBD Act, the Registrars of Births and Deaths are appointed for each local area comprising the area within the jurisdiction of the Municipality, Panchayat or other local authority. The Sub- Registrars are also appointed under section 7(5) of the Act and assigned them any or all powers of Registrars.

(i) At Rural level, the registration work is entrusted to the officials of Panchayat, Health, Revenue, Education and Police Departments of States/UTs. In urban areas, the Health Officer of Municipal Corporation / Municipalities etc. or in absence of such a post, the Executive Officer of the town administration functions as the Registrar of Births and Deaths.

(ii) **Registration centers/ units in Government Hospitals-** In addition to that registration centers/ units have also been opened in major Government hospitals, CHC's/ PHC's in majority of the State. Birth and death event that occurred in that institutions are registered their and certificate of birth/ death is issued by the Medical officer in charge or

equivalent who has been declared as Registrar or Sub Registrar of births and deaths.

- (iii) The events which occurred in private hospital and those hospitals where registration units have not opened will be reported to the concerned Registrar of that area where the hospital exists. Such event will be reported by the institution concerned.

6. How many copies of birth or death certificate can be obtained?

One free copy of birth / death certificate is issued to the informant under Section 12 of the RBD Act. Under the provision of Section 17 of the Act, any number of copies can be obtained by any one after paying the prescribed fee.

7. Whether a birth certificate can be obtained without the name of a child?

Under the provision of Section 14 of the Act, a birth certificate can be obtained without the name of the child. In such cases, the name can be entered by the concerned registration authority without any charge within 12 months and by charging the prescribed fee up to 15 years (from the date of registration), extended from time to time.

8. What are the benefits of registration of birth and death?

The birth certificate is the first right of the child and it is the first step towards establishing its identity. The following compulsory uses of birth and death certificates are emerged:

- For admission to schools
- As proof of age for employment.
- For proof of age at marriage.
- To establish parentage.
- To establish age for purpose of enrollment in Electoral Rolls.
- To establish age for insurance purposes.
- For registering in National Population Register (NPR).

- Production of death certificate for the purpose of inheritance of property and for claiming dues from insurance companies and other companies.

9. Whether a correction is allowed after registration?

Corrections or Cancellations are allowed under the provision of Section 15 of the RBD Act and the corresponding State Rules made there under.

10. If birth occurred to Indian Citizen abroad (outside India), is there any provision to register such birth in India. ?

In case, any child born outside India, his/her birth would be registered under the Citizenship Act 1955 and Citizens (Registration at Indian consulates) Rules, 1956 at the Indian Missions. However, under Section 20 of the RBD Act, if the parents of the child return to India with a view to settling therein, the said birth can be registered within sixty days from the date of arrival of the child in India at the place of settling. If this birth cannot be registered within 60 days, the same can be registered under the delayed registration provisions of section 13 (2) & (3) of the said Act.

11. Whether birth certificate is mandatory to prove the date and place of birth?

The birth certificate is mandatory to prove the date and place of birth of a person who is born on or after 1st October, 2023 for the purposes of—

- (a) admission to an educational institution;
- (b) issuance of a driving licence;
- (c) preparation of a voter list;
- (d) registration of a marriage;
- (e) appointment to a post in the Central Government or State Government or a local body or public sector undertaking or in any statutory or autonomous body under the Central Government or State Government;
- (f) issuance of a passport;
- (g) issuance of an Aadhaar number; and

(h) any other purpose as may be determined by the Central Government.”

12. Is there any mechanism for addressing grievances of general public?

Yes. As per section 25A of the Act, the following provision exists:

25A.(1) Any person aggrieved by any action or order of,—

(i) the Registrar, may prefer an appeal to the District Registrar;
or

(ii) the District Registrar, may prefer an appeal to the Chief Registrar, within a period of thirty days from the date of such action or receipt of such order, as the case may be, in such form and manner as may be prescribed.

(2) The District Registrar or the Chief Registrar, as the case may be, shall decide the appeal referred to in sub-section (1) within a period of ninety days from the date of preferring of such appeal.
